

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 9/04/2026 10:00 AM

#	Case Name	Tentative
1	Marriot Hotel Services, LLC vs. RingCentral, Inc. 30-2024-01429620-CU-BC-CJC	Motion to Seal Exhibits Plaintiff, Marriott Hotel Services, LLC's unopposed motion to seal documents filed in support of defendant's motion for summary judgment is GRANTED. (Cal. Rules of Court, rule 2.551.) The exhibits 16-20, 22, and 23 to the declaration of Jonathan Turner (ROA 274) are ORDERED sealed. The privacy interests of plaintiff's confidential financial and proprietary information overcome the public's interest in access to the records. Disclosure of the information would prejudice the plaintiff's business interests. The proposed order is narrowly tailored to sealing only those confidential documents containing sensitive financial and proprietary information. There is

		no other less restrictive means of protecting the privacy interests involved. Clerk to give notice.
2	The Irvine Company LLC vs. Hacatoryan Corporation 30-2024-01418952-CU-BC-CJC	Motion to Compel Reference and to Appoint Referee Plaintiff The Irvine Company, LLC's Motion to Compel Reference and to Appoint a Referee is DENIED. The Court overrules Defendants' objection to Kroll's declaration and exhibit 1 to the declaration. (See <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218-219.) Plaintiff waived its right to compel reference under the lease by participating in litigation for 22 months and presenting no explanation for the delay. (See <i>Hofer v. Boladian</i> (2025) 111 Cal.App.5th 1, 13 ["Unexplained delay in seeking arbitration, while proceeding with litigation in court without mentioning or seeking to preserve the right to arbitrate, constitutes powerful evidence of the relinquishment and abandonment of the right to arbitrate—including delays comparable to the delay in this case"].) Clerk to give notice.
3	Asmar vs. Alphamotive Motors, LLC 30-2024-01395887-CU-BC-CJC	Motion to Set Aside Entry of Default The motion to set aside default of defendants Jean Pierre Castro and Byron Castro is DENIED. Default was entered against both defendants on 7/2/2025. The motion was filed on 5/28/2026, after the six-month cutoff in Code of Civil Procedure section 473, subdivision (b). Thus, defendants must establish equitable grounds for relief, including extrinsic fraud or mistake. (<i>Kramer v. Traditional Escrow, Inc.</i> (2020) 56 Cal.App.5th 13, 29 (<i>Kramer</i>).) Equitable relief may be given only in exceptional circumstances, and a court's equitable power is narrower than its power under section 473. (<i>Rappleveya v. Campbell</i> (1994) 8 Cal.4th 975, 982, 985.) Defendants declare they retained attorney Dan Miller to represent them in the action and paid him for legal services, believing he would represent all named defendants. However, Miller filed an answer only on behalf of defendant Alphamotive Motors, LLC. Defendants present no documentary evidence supporting their

		declarations, including, for example, an attorney-client fee agreement, emails or other communications concerning their individual representation, receipts or cancelled checks showing payment to Miller, or any like evidence of an attorney-client relationship. Further, defendants were served individually with the summons and complaint and later, the statement of damages, and Miller was served with the request for entry of default of defendants. Miller did nothing on their behalves, which the court infers as evidence Miller did <i>not</i> represent the individual defendants. Defendants have not submitted Miller's declaration. Defendants have not established <i>extrinsic</i> fraud or mistake for the mistaken belief Miller represented them individually. Intrinsic fraud exists when parties have had the opportunity to present their case but unreasonably failed to protect themselves. (<i>In re Marriage of Jones</i> (1987) 195 Cal.App.3d 1097, 1102.) If anything, there was an intrinsic fraud or mistake, which does not support a ground for relief. Finally, relief will be denied if the complaining party's negligence permitted the fraud to be practiced or the mistake to occur. (<i>Kramer, supra</i>, 56 Cal.App.5th at p. 30.) Defendants' negligence led to the result they now face. There are no exceptional circumstances justifying relief. Clerk to give notice. Motion to Strike Defendant Alphamotive Motors, LLC's Answer and Enter Default Plaintiff's motion to strike defendant Alphamotive Motors, LLC's answer and for entry of default is DENIED. Plaintiff has not filed a proof of service of the motion. Clerk to give notice.
4	Clancy vs. General Motors, LLC 30-2023-01350071-CU-BC-CJC	Motion for Attorney Fees, Costs, and Expenses Plaintiff Timothy E. Clancy's motion for attorney fees is DENIED.

		The court has observed a trend in lemon law cases, nearly all of which settle prior to trial, which is wholly absent from all other civil litigation the court oversees. The lemon law parties wait until the eve of trial, plaintiff files a notice of settlement of entire case without disclosing to the court any terms other than whether the settlement is unconditional or conditional, and then fails to follow through with dismissal, later filing a motion for attorney fees on grounds the parties agreed the court would decide the issue of attorney fees and costs as part of their purported settlement. Under the facts of this case, the chosen course of litigation conduct has no basis in law "If an entire case is settled or otherwise disposed of, each plaintiff or other party seeking affirmative relief must immediately file written notice of the settlement or other disposition with the court" (Cal. Rules of Court, rule 3.1385, subd. (a)(1).) "If the settlement agreement conditions dismissal of the entire case on the satisfactory completion of specified terms that are not to be performed within 45 days of the settlement, including payment in installment payments, the notice of conditional settlement served and filed by each plaintiff or other party seeking affirmative relief must specify the date by which the dismissal is to be filed." (<i>Id.</i>, rule 3.1385, subd. (c)(1).) The Judicial Council has adopted for mandatory use Form CM-200, Notice of Settlement of Entire Case (Notice), a form designed to inform the court and parties a settlement has been reached. The Notice states "the entire case has been settled" and requires the signer to state in paragraph 1 whether the settlement is unconditional or conditional. The Notice requires a signature under penalty of perjury from the filer. The court's jurisdiction to enforce a settlement agreement post-dismissal depends on a clear written or oral stipulation of the parties requesting retention of jurisdiction under Code of Civil Procedure section 664.6. Otherwise, the court loses jurisdiction upon dismissal. (See <i>DeSaulles v. Community Hospital of Monterey Peninsula</i> (2016) 62 Cal.4th 1140, 1156 [parties must ask court to retain jurisdiction before dismissal deprives court of jurisdiction].) On 10/22/2025, Plaintiff's counsel, Jordan G. Cohen of Consumer Law Experts, PC, filed a Notice stating the
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	parties had reached a conditional settlement of the entire case and representing under penalty of perjury the entire case had been settled and a request for dismissal would be filed no later than 2/19/2026. Other than the Notice, no party provided the court with any details of the settlement, including, e.g., whether it was entered into following acceptance of a Code of Civil Procedure section 998 offer to compromise or whether the parties had agreed to request the court to retain jurisdiction to enforce settlement terms under Code of Civil Procedure section 664.6. In reliance on Plaintiff's representation, on 10/22/2025, the court vacated all reporting requirements and ordered the parties to comply with California Rules of Court, rule 3.1385 by filing a dismissal upon completion of settlement terms on or before 2/19/2026. The court also vacated the pending trial date of 10/31/2025. On 4/9/2026, Plaintiff filed a request for dismissal without prejudice approximately two months after the 2/19/2026 deadline. The same day, Plaintiff filed a memorandum of costs, and on 5/27/2026, Plaintiff filed a motion for attorney fees. In the motion, the court was informed Plaintiff had accepted Defendant's 998 offer of compromise on 12/16/2025, which is curious, because the Notice was filed approximately two months earlier. In any case, the 998 offer provided, inter alia, (1) Plaintiff's attorney fees, expenses, and costs "may be determined by the Court via noticed motion"; (2) the Court would retain jurisdiction to enforce the offer of compromise under Code of Civil Procedure section 664.6; and (3) Plaintiff would file a request for dismissal of the entire action with prejudice, within 5 business days of receiving all payments from defendant. As the parties never requested the court retain jurisdiction under section 664.6 when dismissal was requested and entered on 4/9/2026, the court lost jurisdiction to hear any motion for attorney fees. The court considers the filing of the Notice under penalty of perjury representing the entire case has been settled a misrepresentation to the court if, indeed, additional law and motion over settlement terms is contemplated, as it was here. Settlement of the "entire case" means just
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		that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See <i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 535 [“A settlement with open material terms is not a ‘conditional settlement.’ To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms.”].) Further, plaintiff “must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6.” (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, “Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court’s own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6” (<i>Id.</i>) Because the court has lost jurisdiction and the issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the 998 offer, and/or whether some other procedure was viable. The court rules only that the chosen course of action was not. Clerk to give notice.
5	Holcomb vs. General Motors, LLC 30-2026-01559179-CU-NP-CJC	Motion to Deem Vexatious Litigant Continued to 10/2/2025 for parties to comply with California Rules of Court.
6	Boyd vs. Fernandez 30-2025-01523882-CU-PA-CJC	Motion to Strike Portions of First Amended Complaint Defendant/cross-complainant Alejandro Fernandez’s Motion to Strike Portions of Plaintiff’s First Amended Complaint is DENIED in part and GRANTED in part with 10 days leave to amend.

		The Court GRANTS Plaintiff's request for judicial notice. The FAC does not allege Plaintiff voluntarily consumed alcoholic beverages to the point of intoxication knowing from the outset he must thereafter operate a motor vehicle. (See <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 899 [citation omitted].) The Court GRANTS Defendant/cross-complainant's Motion to Strike with respect to Plaintiff's request for punitive damages. A determination of whether the specific felonies alleged to have been committed by Defendant may ultimately establish the basis for attorney fees is not appropriate at this stage. The Court DENIES Defendant/cross-complainant's Motion to Strike with respect to paragraphs 16 and 18 and the allegations and prayer regarding attorney fees pursuant to Civil Code section 1021.4. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean copy of the amended pleading. Clerk to give notice.
7	Vasquez vs. Mercedes-Benz USA, LLC 30-2026-01559886-CU-BC-CJC	Demurrer to Complaint Defendant Mercedes-Benz USA, LLC's Demurrer to the Complaint is OVERRULED. Defendant is ORDERED to file its answer within 5 days. Plaintiff alleges sufficient facts to support her Song Beverly claims. Plaintiff alleges the vehicle was <i>purchased</i> with an "express written warranty." (Compl., ¶ 11.) Thus, Plaintiff has sufficiently alleged facts to support a claim the vehicle qualified as a "new motor vehicle" and the claim does not stem from any warranty provided from the original lease of the vehicle. (See <i>Rodriguez v. FCA US LLC</i> (2024) 17 Cal.5th 189, 205 [vehicle sold with balance left on new car warranty not "new motor vehicle" unless new warranty issued with sale.] Clerk to give notice.
8	Choi vs. Oh 30-2026-01547737-CU-PO-CJC	Demurrer to Complaint Defendants David Byungik Oh and The Happier Church's Demurrer to Plaintiffs Yoon Suk Choi and Jea H. Kim aka Joshua Kim's Complaint is OVERRULED in part and SUSTAINED in part with 10 days leave to amend.

		<u>First cause of action for elder abuse – SUSTAINED</u> The complaint alleges, “[a]t all times herein mentioned, CHOI, has been over seventy years old” (Compl. ¶ 1) and thus sufficiently alleges Choi was an elder pursuant to Welfare & Institutions Code section 15610.27. The statute of limitations for a cause of action for financial abuse of an elder or dependent adult is four years. (Cal. Welf. & Inst. Code, § 15657.7) Plaintiff does not sufficiently allege when the actions alleged to constitute financial abuse occurred for purposes of the statute of limitations. <u>Second cause of action for sexual assault - OVERRULED</u> The statute of limitation for a civil action for sexual assault that occurred when the plaintiff is over 18 years old is 10 years. (Code Civ. Proc., § 340.16, subd. (a)(1).) Plaintiff alleges the sexual assault occurred “while attending the church and serving in the capacity of Music Director” (Compl. ¶ 11), which was alleged to be “about five years ago.” (Compl. ¶ 6.) These allegations sufficiently place the occurrence of the alleged sexual assault within the applicable statute of limitations. <u>Third cause of action for assault and battery - SUSTAINED</u> The statute of limitations for a civil action for assault or battery is two years. (Code Civ. Proc., § 335.1.) Plaintiff alleges the sexual assault occurred “while attending the church and serving in the capacity of Music Director” (Compl. ¶ 11), which was alleged to be “about five years ago.” (Compl. ¶ 6.) This does not sufficiently allege when the actions alleged occurred for purposes of the statute of limitations. <u>Fourth cause of action for defamation-slander – SUSTAINED</u> The statute of limitations for a civil claim for defamation based on slander is one year. (Code Civ. Proc., § 340, subd. (c).) Plaintiffs allege after Choi left the church, Plaintiffs “hired an attorney to help resolve the matter between the parties. However, defendant OH responded by accusing plaintiffs to being extortionists.” (Compl. ¶ 12.) This does
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		not sufficiently allege when the actions alleged occurred for purposes of the statute of limitations. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice. Motion to Strike Portions of Complaint Defendants David Byungik Oh and The Happier Church's Motion to Strike Portions of Plaintiffs' Complaint is GRANTED with 10 days leave to amend. With respect to Plaintiff's second cause of action, Plaintiff does not allege sufficient facts to support a request for punitive damages. (See Compl. ¶ 11.) If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice.
9	Buriyev vs. California Unemployment Insurance Appeals Board 30-2026-01533151-CU-WM-CJC	Demurrer to Petition for Writ of Mandate Vacated – first amended petition was filed.
10	Burke vs. City of Newport Beach 30-2024-01436236-CU-PA-CJC	Motion for Summary Judgment and/or Summary Adjudication Defendant City of Newport Beach motion for summary judgment or in the alternative summary adjudication GRANTED. Defendant's request for judicial notice ("RJN") is GRANTED. (Evid. Code, § 452, subd. (d).) Defendant's evidentiary objections (ROA 172) are OVERRULED. The court declines to rule on Plaintiff's objections (ROA 147 & 166) because they are not numbered consecutively. (Cal. Rules of Court, rule 3.1354(b); see <i>Hodjat v. State Farm Mutual Automobile Ins. Co.</i> (2012) 211 Cal.App.4th 1, 9 [court may decline to rule on objections not filed in conformity with formatting rules nor is court required to give party second chance at filing properly formatted objections].) The court also declines to consider objections stated in Plaintiff's responsive separate statement (ROA 131) because they do not refer

	to specific evidentiary objections by objection number and they restate and reargue the objections. (Cal. Rules of Court, rule 3.1354(b); see <i>Hodjat, supra</i>, 211 Cal.App.4th at p. 8.) Plaintiff purports to dispute Defendant’s Undisputed Material Facts (“UMF”) Nos. 9, 11, 14-16, 19, 20, 22-24, 28-35, 39, 44-49, 51-56, and 59. (See ROA 131.) However, Plaintiff fails to reference evidence supporting her position that the facts are disputed as required by California Code of Civil Procedure, section 437c, subdivision (b)(3) and California Rules of Court, rule 3.1350(f)(2). “Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court’s discretion, for granting the motion.” (Code Civ. Proc., § 437c, subd.(b)(3); see also <i>Collins v. Hertz Corp.</i> (2006) 144 Cal.App.4th 64, 72-73; <i>Champlin/GEI Wind Holdings, LLC v. Avery</i> (2023) 92 Cal.App.5th 218, 226-227 [failure to file a timely opposition, including a separate statement with any supporting admissible evidence was sufficient grounds to grant summary judgment].) The court will not consider Defendant’s evidence submitted on reply. (See Code Civ. Proc., § 437c, subd.(b)(4).) <u>Complaint</u> Plaintiff alleges causes of action for dangerous condition of public property (Gov. Code, §§ 830, 835 et seq.) and failure to warn of dangerous condition of public property (Gov. Code, §§ 830, 830.6, 830.8, 835 et seq.) <u>Design Immunity for Dangerous Condition of Public Property</u> The affirmative defense of design immunity shields public entities and employees from liability for injuries caused by a plan or design of public property, provided three elements are met. “A public entity claiming design immunity must show the existence of three elements, (1) [a] causal relationship between the plan and the accident; (2) discretionary approval of the plan prior to construction; [and] (3) substantial evidence supporting the reasonableness of the design.” (<i>Grenier v. City of Irwindale</i> (1997) 57 Cal.App.4th 931, 939 [cleaned up] (<i>Grenier</i>); Govt. Code, § 830.6.) The rationale for design immunity is to prevent a jury from second-guessing the decision of a public entity by reviewing the identical questions of risk that had
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		previously been considered by the government officers who adopted or approved the plan or design. (See <i>Rodriguez v. Department of Transp.</i> (2018) 21 Cal.App.5th 947, 954.) Design immunity is often raised on summary judgment. (<i>Stufkowsky v. Department of Transp.</i> (2023 97 Cal.App.5th 492, 498 (<i>Stufkowsky</i>)).) However, courts apply a modified standard departing from the ordinary summary judgment rules in significant ways. The normal rules governing a motion for summary judgment, and requiring its denial if any triable issue of fact appears, are not fully applicable to cases involving design immunity under Government Code section 830.6 (<i>Stufkowsky, supra</i>, 97 Cal.App.5th at p. 497.) The defendant is not required to prove the design or plan was in fact a reasonable one; instead, the defendant is merely required to adduce any substantial evidence a reasonable public employee or legislative body could have approved the plan or design. (<i>Ibid.</i>) Thus, when the defendant files a motion for summary judgment, the existence of a possible conflict of evidence, as shown by the proof submitted on the motion, will not create a triable issue on the reasonableness aspect of the defense that can defeat summary judgment. (<i>Ibid.</i>) The court is to determine whether there is any substantial evidence upon the basis of which a reasonable public employee could have adopted the plan or design. (Gov. Code, § 830.6.) A public entity must be granted design immunity <i>even if</i> reasonable minds can differ concerning whether a design should have been approved; the statute does not require property be perfectly designed, only that it be given a design that is reasonable under the circumstances. (See <i>Gonzales v. City of Atwater</i> (2016) 6 Cal.App.5th 929, 946.) <i>1. Causal Relationship</i> Defendant points to Plaintiff’s allegations in her complaint to support the element of causation. A defendant “may rely on the allegations of the complaint to establish causation.” (<i>Alvis v. County of Ventura</i> (2009) 178 Cal.App.4th 536, 550.) Plaintiff’s complaint alleges the Subject Intersection and adjacent area were a dangerous condition due to “one or more of the following reasons: (i) the absence of reflective markings and/or devices; (ii) the absence of sufficient traffic control devices warning motorists of
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	pedestrian traffic; (iii) the complete absence of reduced speed warnings and/or devices; (iv) the complete absence of speed reduction devices; (v) pedestrian present/in the crosswalk warnings or devices; (vi) the impaired and obstructed visibility of pedestrians in the crosswalk at the Subject Intersection; (vii) the impaired and obstructed visibility of westbound Balboa motorists approaching the Subject Intersection; (vii) the complete absence of any traffic signs and/or devices warning pedestrians and/or motorists of the impaired and obstructed visibility at and about the Subject Intersection; and (viii) that drivers regularly drove in a dangerous and reckless manner, which Defendant knew and should have known through their agents and agency relationships.” (RJN, Ex. 1 [Complaint], ¶¶ 22.) “Plaintiff’s injuries were a direct result of Defendants’ actions and omissions” including, “Defendants’ negligent, unsafe, improper, and inadequate ownership, control, use, operation, management construction, maintenance, repair, design, and supervision of said property at and near the location of the incident.” (Compl. at ¶¶ 30, 32.) “To the extent the design of the Subject Intersection and surrounding area was approved, said approval was unreasonable and constituted a manifest abuse of discretion, or was otherwise negligent by failing to address the applicable engineering standards and conditions then existing or reasonably contemplated to exist in the future, once said design was implemented.” (Id. at p. 34). Plaintiff is necessarily complaining her accident was caused by the design of the Subject Intersection. Plaintiff’s own allegations establish the causal link between the design of the Subject Intersection and Plaintiff’s accident. Defendant has met its burden as to the first element of design immunity. <i>2. Discretionary Approval</i> “The second element, discretionary approval prior to construction, simply means approval in advance of construction by the legislative body or officer exercising discretionary authority. A detailed plan, drawn up by a competent engineering firm, and approved by a city engineer in the exercise of his or her discretionary authority, is persuasive evidence of the element of prior approval.” (<i>Grenier, supra</i>, 57 Cal.App.4th at pp. 940–941.) The immunity applies to the consequences of the plan or design, and that can include intentional omissions
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	to not include certain designs or features. (See <i>Sutton v. Golden Gate Bridge, Highway & Transp. Dist.</i> (1998) 68 Cal.App.4th 1149, 1159-1161 (<i>Sutton</i>) [design decisions can include decisions to omit features].) The undisputed material facts establish Defendant adopted three plans via review and approval by its Public Works Director, City Engineer and/or City Traffic Engineer: (1) in 2002, the City of Newport/Balboa Roadway Rehabilitation and Storm Drain Improvements (AHRP STPL-0515-016); (2) in 2018, the City of Newport Beach Public Works Department Balboa Peninsula Crossing Signing and Striping Improvements, Plan T-6039-S ("Plan T-6039-S"); and (3) in 2023, the City of Newport Beach Public Works Department Signing and Striping Improvement Plan, T-6085-S ("Plan T-6085-S") (collectively, the "Plans"). (UMF 30, 36-38, 42.) The undisputed material facts also establish in 2017, Defendant contacted a traffic engineering consultant, Albert Grover Associates, to conduct a study of all the pedestrian crossings on the Balboa peninsula ("Peninsula Study"). (UMF 31.) The Peninsula Study, which included the Subject Intersection, concluded, among other things, there were relatively few reported collisions involving pedestrians in consideration of the popularity of the area. (UMF 32.) The Peninsula Study recommended various conceptual improvements at each uncontrolled crosswalk, including recommendations not to use (1) yellow flashing treatments at the uncontrolled crosswalks, (2) triangular yield markings on the roadway surface in front of each crosswalk at Balboa Blvd. and 20th Street; and (3) a device that activates a warning when a pedestrian is present at the location. (UMF 34.) Taken together, the plans adopt and approve, consistent with the Peninsula Study, all conditions of the Subject Intersection placed at issue by the Complaint (i.e., the curve design of the roadway near the Subject Intersection, the type of traffic control or reduction devices to be used or not used in connection with the roadway, and high visibility continental markings, signs and/or warnings to be utilized or not utilized in connection with the crosswalk) as they existed on the date of the accident. (UMF 18, 20, 21, 27, 29, 31, 34-36, 39, 41, 43, 54.) Defendant has met its burden on the second element. 3. <i>Substantial Evidence of Reasonableness</i>
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		Substantial evidence to establish the third element of the design immunity defense may consist of the following: "Discretionary approval of the design plans themselves; the expert opinion of a civil engineer as to the reasonableness of the design; or evidence the design or plan complies with prevailing professional standards. A mere conflict in the testimony of expert witnesses provides no justification for the matter to go to a lay jury who will then second-guess the judgment of skilled public officials." (<i>Menges v. Department of Transportation</i> (2020) 59 Cal.App.5th 13, 21 [cleaned up].) "Generally, a civil engineer's opinion regarding reasonableness is substantial evidence sufficient to satisfy this element." (<i>Grenier, supra</i>, 57 Cal.App.4th at p. 941.) Defendant offers the declaration of Rock Miller, Defendant's expert Civil Engineer, who opines the Intersection traffic controls including roadway markings and traffic signs provided for in Plan T-6085-S and Plan T-6039-S are reasonable and would have been approved by a reasonable, knowledgeable, and qualified engineer. (UMF 44.) He attests the location of the crosswalk to have been reasonable despite it being near a curvature in the roadway (as reflected in the Plans) providing more than sufficient sight distance of the roadway ahead to stop, if necessary. (UMF 28.) He also opines improvements employed by the City at the Accident site (1) are consistent with the recommendations of the Peninsula Study (UMF 35), (2) exceed all applicable government standards, and (3) created a roadway which would have allowed a driver exercising reasonable due care to see a pedestrian lawfully within the crosswalk and yield accordingly. (UMF 44, 46, 49, 55.) Lastly, he confirms there have been no substantial changed conditions or collision history at or near the Intersection that would affect the reasonableness of the design of the Subject Intersection as reflected in Plan T-6085-S and Plan T-6039-S. (UMF 45.) In opposition, Plaintiff spends less than 2 pages on the design immunity issue, instead focusing primarily on dangerous condition. But even assuming for purposes of analysis a dangerous condition exists, design immunity, as the name suggests, makes Defendant immune from liability. Plaintiff argues Defendant has not established any of the elements of the design immunity because Defendant has not offered evidence that significant features of the Subject Intersection alleged to be the cause of the
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	dangerous condition were considered (to any extent) and approved in a design plan. According to Plaintiff, these “significant features” include parking along and trees in the center median of Balboa Blvd.; curvature of the Balboa Blvd. for westbound traffic; and the absence of appropriate traffic control measures to protect pedestrians. However, as mentioned above, design immunity applies to the consequences of the plan or design, which can include intentional omissions not to include certain designs or features. (See <i>Sutton, supra</i>, 68 Cal.App.4th at pp. 1159-1161; see also <i>Rodriguez v. Department of Transp., supra</i>, 21 Cal.App.5th at pp. 959-960 [where an alleged dangerous feature is part of the approved plans, even though not specifically mentioned or considered, design immunity applies].) As to the center median trees, which Plaintiff alleges is a feature of the dangerous condition, Plaintiff also argues it does not matter whether Defendant submitted relevant design plans in support of its Motion. According to Plaintiff, no one could approve the plans related to the center median trees because Defendant’s own City Standards were not complied with. Namely, per Defendant’s Project Manager and Defendant’s CS 105, the Revitalization Plan designs were required to incorporate sight distance analyses regarding the Subject Intersection but did not. However, the evidence establishes CS 105 does not apply to the Balboa Blvd./20th Street Intersection. CS 105 is a standard employed by Defendant for intersection sightlines “for side streets as they exit on the main roadways;” in other words, it applied to “20th street specifically entering Balboa Boulevard.” (Perry Decl. ISO Opposition to Motion, Ex. 17 at p. 34:7-14.) Defendant has met its burden as to the third element. <u>Failure to Warn</u> “Section 830.8 provides a second form of immunity, precluding public entity liability ‘for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code.’ (§ 830.8.) Section 830.8, however, sets forth a limitation to such immunity: ‘Nothing in this section exonerates a public entity ... from liability for injury ... caused by such failure if a signal, sign, marking or device ... was necessary to warn of a dangerous condition which endangered the safe movement of traffic and which would
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	not be reasonably apparent to, and would not have been anticipated by, a person exercising due care.’ This limitation to section 830.8 immunity is commonly referred to as the ‘concealed trap’ exception.” (<i>Tansavatdi v. City of Rancho Palos Verdes</i> (2023) 14 Cal.5th 639, 654.) If plaintiff is unable to establish the absence of a warning sign was a substantial factor in causing the injury, the claim will fail. (<i>Id.</i> at p. 661.) Hence, Plaintiff must prove “(1) the public entity had actual or constructive notice that the approved design resulted in a dangerous condition (see §§ 835, subd. (b), 835.2 [defining ‘notice’ within the meaning of § 835, subd. (b)]); (2) the dangerous condition qualified as a concealed trap, i.e., ‘would not [have been] reasonably apparent to, and would not have been anticipated by, a person exercising due care’ (§ 830.8); and (3) the absence of a warning was a substantial factor in bringing about the injury.” (<i>Tansavatdi, supra</i>, 14 Cal.5th at p. 662.) Here, the undisputed material facts establish: the crosswalk markings and standard warning signs are present at the Subject Intersection to indicate the presence of a crosswalk (UMF 51, 53); the signage includes a yellow Caltrans Standard PED XING sign in the median at the left end of the crosswalk facing westbound, together with an arrow sign with arrows pointing down toward the ends of the crosswalk as they pass the median placed directly in front of approaching motorists (UMF 21-22); traffic striping and controls at the Subject Intersection meet or exceed the California Manual on Uniform Traffic Control Devices (“CA MUTCD”) requirements (UMF 44, 49); one traffic sign on the median advising of the crosswalk exceeds CA MUTCD requirements (UMF 46); the speed limit for the area is either 25 or 30 mph (UMF 14-15); the marked uncontrolled crosswalk across the east leg of Balboa Blvd at 20th Street is marked with high visibility continental markings and a transverse limit line (UMF 18-20); there are no visible obstructions in the area and lengthy sight distances for pedestrians and drivers (UMF 23-26); the design of the curvature of the roadway of westbound Balboa Boulevard approaching the Subject Intersection is reasonable and provides more than sufficient sight distance of the roadway ahead for a driver, pedestrian, or both, to stop or adjust their speeds, if necessary (UMF 28); there is no additional traffic control measure that would have been required by the CA MUTCD for the Subject Intersection and crosswalk, based upon traffic
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		volume, pedestrian volume, collision history, and the physical conditions present at the intersection (UMF 52); during the 10 years prior to the Accident, approximately 500,000 pedestrians used the subject crosswalk and 77 million vehicles entered the Intersection, and there were only nine reported collisions involving pedestrians (UMF 47); and no conditions exist at the Subject Intersection that would have prevented a driver exercising reasonable due care from seeing pedestrians lawfully within the crosswalk and yielding accordingly (UMF 55). Further, pursuant to Vehicle Code section 21950, while a driver must yield the right-of-way to a pedestrian crossing the roadway, nothing therein relieves a pedestrian from the duty of using due care for his or her own safety. (Veh. Code, § 21950, subds. (a), (b).) Instead, both parties owe a duty of due care to each other. (<i>Id.</i>, § 21950, subds. (b), (c).) Given this mandate, the high visibility of the crosswalk and the signage, and the significant line of sight available to both pedestrians and motorists utilizing the Subject Intersection, Defendant has established there was no failure to warn of a concealed trap. Plaintiff's opposition fails to address the second cause of action for failure to warn. Defendant to submit a proposed judgment within 5 days. Clerk to give notice.
11	Star vs. TopRank Motorworks Inc. 30-2024-01434530-CU-BC-CJC	Motion for Summary Judgment and/or Summary Adjudication Defendant Toprank Motorworks, Inc.'s motion for summary judgment, or in the alternative for summary adjudication, on all causes of action alleged in plaintiff Keven Star's Complaint is DENIED. The court declines to rule on Toprank's Evidentiary Objections to Plaintiff's evidence as they are not material to the disposition of the Motion. <u>Breach of Implied Warranty of Merchantability under the Song-Beverly Consumer Warranty Act (SBA):</u> Plaintiff has shown there are triable issues of material fact as to whether the used 1995 Nissan GT-R Vspec ("Subject Vehicle") Plaintiff purchased from Toprank was sold with an express warranty.

	Plaintiff has shown there are triable issues of fact as to whether the written addendum to the Bill of Sales creates an express warranty. The Bill of Sales states: "Must go through CARB Compliance to gain California Registration and will be delivered upon registration." (AMF 50.) Based on the language in the Bill of Sales there is a triable issue of material fact as to whether the language creates an express warranty the Subject Vehicle would be brought into CARB compliance prior to delivery. Further, Plaintiff has shown there are triable issues of material fact as to whether Toprank's disclaimers complied with Civil Code section 1792.4. Toprank's Buyer's Guide, Bills of Sale, and Vehicle Purchase Disclosure and Waiver of Liability do not contain the specific statement required by section 1792.4, subdivision (a)(3) that "the buyer and not the manufacturer, distributor, or retailer assumes the entire cost of all necessary servicing or repair." (UMF No. 7.) <u>Breach of Implied Warranty Under the Magnusson-Moss Warranty Act (Magnuson-Moss):</u> Magnuson-Moss warranty claims may be predicated on the SBA or the warranty provisions in the California Uniform Commercial Code. (<i>Orichian v. BMW of North America, LLC</i> (2014) 226 Cal.App.4th 1322, 1332.) Defendants move on grounds Plaintiff does not have any implied warranty claim under the California Commercial Code that would support its Magnuson-Moss cause of action. However, as discussed above, Plaintiff has shown there are triable issues of material fact as to whether Plaintiff has a claim for implied warranty under the SBA. As such, Defendant has not met its initial burden on the Motion. <u>Violation of Consumer Legal Remedies Act (CLRA):</u> Plaintiff's CLRA Notice dated October 27, 2023, is deficient because it fails to provide notice of the particular CLRA violations alleged in the Complaint. The CLRA Notice only states Toprank had violated the CLRA through their "representations about the time and money it would take to update the vehicle to be California Compliant." (UMF 39, 42.) However, failure to comply with the prelawsuit notice requirements of section 1782 only entitles Toprank to a dismissal without prejudice. (<i>Morgan v. AT&T Wireless</i>
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		<i>Services, Inc.</i> (2009) 177 Cal.App.4th 1235, 1260–1261.) Toprank has not requested a dismissal without prejudice. Clerk to give notice.
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